



Torres Strait Fisheries (Spanish Mackerel) Management Instrument 2025

The Protected Zone Joint Authority make the following instrument.

Dated 19 December 2025

The Hon Julie Collins MP, Commonwealth Minister for Agriculture, Fisheries and Forestry

The Hon Anthony (Tony) Perrett MP, Queensland Minister for Primary Industries

Mr George Nona, Chairperson, Torres Strait Regional Authority

For and on behalf of the Protected Zone Joint Authority

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1 Name

This instrument is the *Torres Strait Fisheries (Spanish Mackerel) Management Instrument 2025*.

2 Commencement

This instrument commences on the day after it is registered on the Federal Register of Legislation.

3 Authority

This instrument is made under section 16(1) and section 35(1)(a) of the Act.

4 Definitions

Note: A number of expressions used in this instrument are defined in section 3 of the Act, including the following:

- (a) boat;
- (b) fish;
- (c) Torres Strait Treaty;
- (d) traditional inhabitant;
- (e) traditional fishing.

In this instrument:

Act means the *Torres Strait Fisheries Act 1984*.

finfish means all fish of the superclass *Pisces* other than:

- (a) mackerel; and
- (b) tuna (*Thunnus spp.*); and
- (c) skipjack tuna (*Katsuwonus pelamis*); and
- (d) fish of the family Bramidae (known as pomfrets); and
- (e) fish of the familis Istiophoridae by Xiphiidea (known as billfish).

finfish fishery means the area of the finfish fishery prescribed in item 4 of the table in Schedule 2 to the Regulations.

finfish licensed person means a person who is a ***licensed person*** that is authorised to take, process or carry finfish in the finfish fishery.

handlining means fishing by hand using line fishing apparatus where each line fishing apparatus has no more than 6 hooks attached to it and no more than 3 line fishing apparatus are being used for fishing.

licensed person means a person who has been granted a licence under subsection 19(2), 19(3) or 19(4A) of the Act, or transferred such a licence under section 25 of the Act, that authorises the taking, processing or carrying of fish.

line fishing apparatus means any combination of one or more of the following:

- (a) hand held fishing lines; and
- (b) fishing rods; and
- (c) mechanically operated fishing reels and lines.

mackerel means species of fish that are:

- (a) grey mackerel (*Scomberomorus semifasciatus*); and
- (b) school mackerel (*Scomberomorus queenslandicus*); and
- (c) shark mackerel (*Grammatorcynus bicarinatus*); and
- (d) Spanish mackerel (*Scomberomorus commerson*); and
- (e) spotted mackerel (*Scomberomorus munroi*).

mackerel fishery means the area of the Spanish mackerel fishery prescribed in item 7 of the table in Schedule 2 to the Regulations.

mackerel licensed person means a person who is a ***licensed person*** that is authorised to take, process or carry mackerel in the mackerel fishery.

PZJA Arrangement means the document titled “*Arrangement between the Commonwealth and the State of Queensland under section 31 of the Torres Strait Fisheries Act 1984*” dated 17 March 1999 and published on the Federal Register of Legislation, as that document exists at the commencement of this instrument.

Note: The PZJA Arrangement can be viewed on the website of the Federal Register of Legislation (<https://www.legislation.gov.au/F2008B00750>).

Regulations means the *Torres Strait Fisheries Regulations 1985*.

Sunset licence holder means, in respect of a licence granted under subsection 19(2) of the Act that authorises the taking, processing or carrying of mackerel in the mackerel fishery, a person who has been temporarily transferred such a licence under section 25 of the Act.

trolling means a fishing method where lures or baits attached to line fishing apparatus are towed behind a slowly moving boat.

5 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

6 Prohibition on taking, processing or carrying mackerel

- (1) The taking, processing or carrying of mackerel in the area of the mackerel fishery is prohibited.

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- (2) A person is exempt from the prohibition in subsection 6(1) when the person is a mackerel licensed person.
- (3) A person is exempt from the prohibition in subsection 6(1) when the person is a finfish licensed person, other than a finfish licensed person who has been temporarily transferred such a licence under section 25 of the Act, and the person does not possess any more than 20 kilograms of mackerel in any form.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

7 Treaty endorsements

A person is exempt from subsection 6(1) where:

- (a) he or she takes, processes or carries mackerel on a boat for which a Treaty endorsement under section 20 of the Act is in force; and
- (b) the mackerel is taken, processed or carried in accordance with the conditions specified in the Treaty endorsement under section 22 of the Act.

8 Prohibition on taking, processing or carrying undersize mackerel

- (1) The taking, processing or carrying of mackerel of a species listed in an item in column 1 of the table that is less than the length specified in column 2 of the table by a mackerel licensed person is prohibited.

Item	Column 1 Species of mackerel	Column 2 Minimum length (centimetres)
1	grey mackerel (<i>Scomberomorus semifasciatus</i>)	75
2	school mackerel (<i>Scomberomorus queenslandicus</i>)	50
3	shark mackerel (<i>Grammatorcynus bicarinatus</i>)	50
4	Spanish mackerel (<i>Scomberomorus commerson</i>)	75
5	spotted mackerel (<i>Scomberomorus munroi</i>)	60

- (2) For the purposes of subsection 8(1), the length of a fish is taken to be the longest of the following measurements:

- (a) the point of the snout to the end of the tail fin; or
- (b) the point of the snout to the end of the caudal fin; or
- (c) the tip of the lower jaw to the end of the tail fin; or
- (d) the tip of the lower jaw to the end of the caudal fin.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

9 Prohibition on the use of certain methods

- (1) The taking of mackerel by a mackerel licensed person using methods to which subsection (2) applies is prohibited.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

- (2) This subsection applies to:

(a) all fishing methods other than trolling or handlining.

10 Prohibition on the use of certain equipment

- (1) The taking of mackerel by a mackerel licensed person using equipment to which subsection (2) applies is prohibited.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

- (2) This subsection applies to all fishing equipment other than line fishing apparatus.

11 Prohibition on the use of certain methods in certain areas for sunset licence holders

The taking of mackerel by a sunset licence holder in the area of the Australian territorial sea surrounding Bramble Cay and Black Rocks:

- (1) is prohibited between the hours of 0930 and 1500 (Australian eastern standard time) each day during the months of August to December in a given year; and
- (2) outside the time periods set out in subsection(1), is prohibited by all fishing methods other than trolling.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

Schedule 1—Repeals

Torres Strait Fisheries Management Instrument No. 14

1 The whole of the instrument

Repeal the instrument.